

Overview and Hypotheses

Social scientists have long understood that socialization plays an important role in the development of people’s attitudes. In this module, I investigate the association between the childhood surroundings (urban or rural) of justices on the U.S. Supreme Court and their subsequent voting behavior in four issue areas. My general theory is that justices who grew up in urban environments were more likely to be exposed to a diversity of people and opinions at an early age than those from more rural areas, and that this will in turn affect their decisions once they are appointed to the Court.

My theory leads me to expect that urban-raised justices will be more likely to cast votes in a politically liberal direction than their rural counterparts. In particular, I expect that urban/rural differences will be observed in cases involving four issues where the rural/urban distinction is most stark: racial discrimination cases, cases about education, criminal/policing cases, and cases involving gender discrimination.

Data and Measurement

I draw upon two data sources. The first is the U.S. Supreme Court Judicial Database,¹ which contains all decisions made by the U.S. Supreme Court during its 1946 to 2024 terms. The second is the Supreme Court Justices Database,² which contains biographical information on all U.S. Supreme Court justices. These two data sources were merged for the analysis.

My main outcome of interest is each justice’s vote in each case (variable `direction`), coded 1 if the vote was in a liberal direction and 0 otherwise. My main independent variable is whether (= 1) or not (= 0) each justice spent their childhood in an urban environment. This was drawn from the `childsur` variable, with justices described as having come from an “urban” environment coded as 1, and those from “family farm” or “small town” coded as 0. I limit my analyses to cases from four issue areas: racial discrimination (cases with `issue` = 20040, 20050, 20070, or 20080), education (`issue` = 20050, 20290, or 30180), criminal law (`issueArea` = 1), and gender discrimination (`issue` = 20130 or 20140).

Analysis and Findings

Figure 1 shows the overall liberal voting percentages for all justices in cases involving the four selected issues. The highest liberal percentages are in racial discrimination and education cases (72.7 and 70.3 percent, respectively). Sex discrimination cases are next at 63.0 percent, and criminal cases have the lowest liberal percentages at 48.8 percent.

¹Available at <https://scdb.la.psu.edu/>.

²Available at <https://epstein.wustl.edu/s/justicesdata2022.csv>.

Figure 1: Liberal And Conservative Voting Across Four Issue Areas

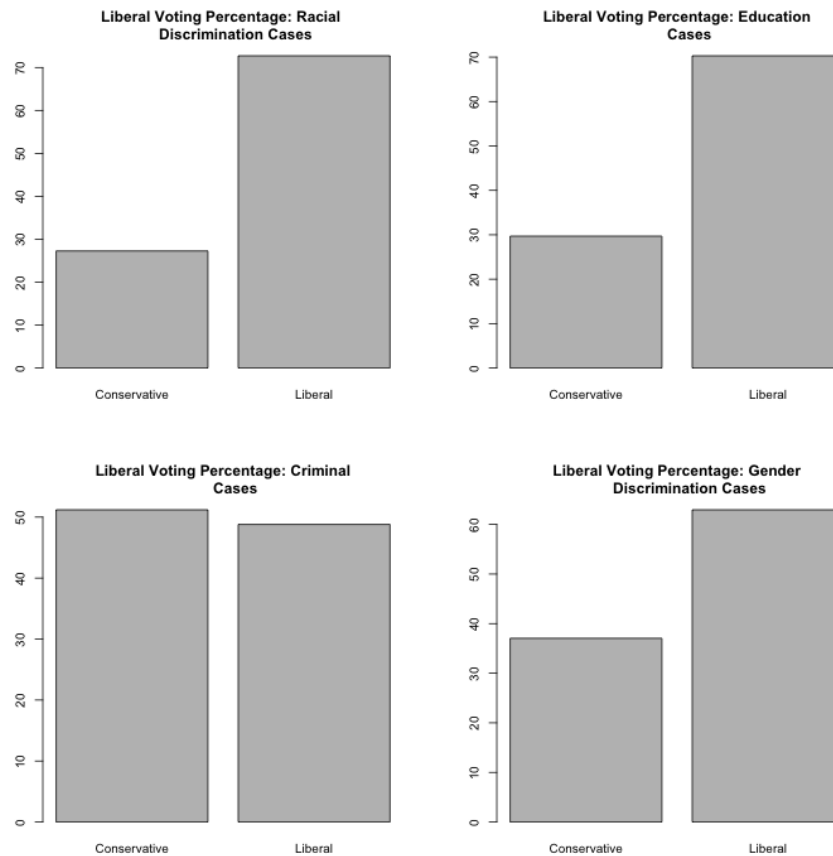


Figure 2 shows the percentage of justices on the Court during the 1946-2024 period from urban and non-urban backgrounds. During that period, 27 of the 41 justices (66 percent) were from urban backgrounds, and 14 (34 percent) from rural backgrounds.

Table 1 presents results of the analysis of Supreme Court voting by urban / rural background in the four issue areas examined. The table reports the percent of liberal votes for each type of justice, along with the difference between those percentages and the t -test for the difference of the two means. In every issue area, justices from urban backgrounds voted liberally at a *lower* rate than their counterparts from rural areas. The difference is largest in cases involving racial discrimination, and smallest in criminal cases. The results of the t -tests indicate that three of the four differences are statistically significant at the $P = 0.01$ level; the urban-rural difference in liberal voting in gender discrimination cases has a P -value of 0.17.

Figure 2: Backgrounds of Supreme Court Justices, 1946-2024 ($N = 41$)

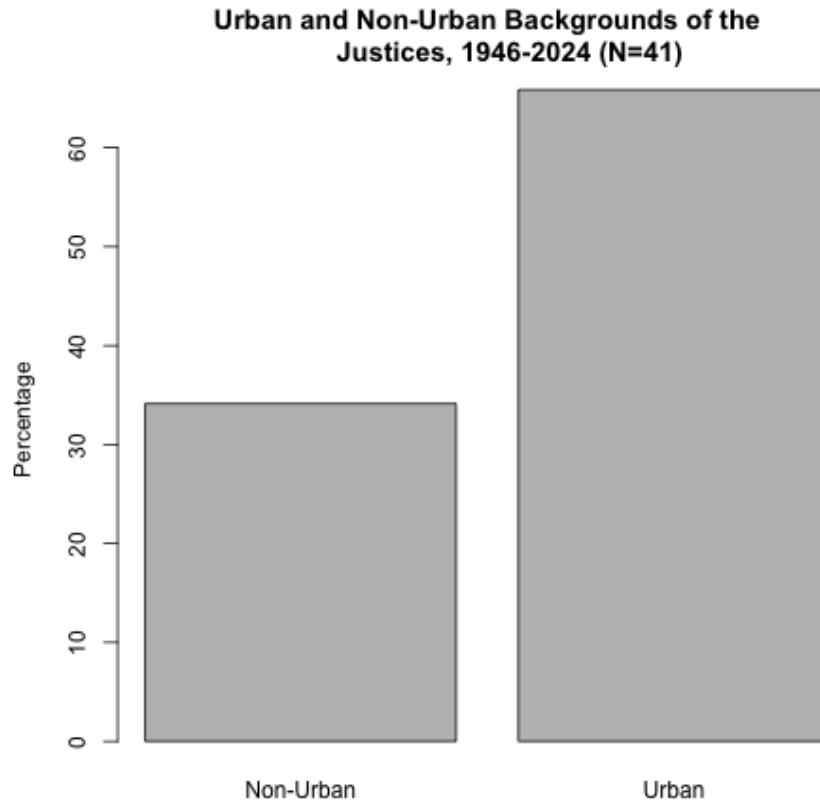


Table 1

Issue Area	Liberal %:		Difference	<i>t</i> -test	<i>P</i> -value
	Urban	Rural			
Racial Discrimination	69.0%	79.3%	-10.3%	5.21	< 0.01
Education	67.8%	75.9%	-8.1%	2.95	< 0.01
Crime	47.2%	52.5%	-5.3%	6.79	< 0.01
Gender Discrimination	61.9%	67.5%	-5.6%	1.37	0.17

Summary

The results in Table 1 suggest that, contrary to our expectations, justices who had urban upbringings typically vote liberally less often than those with rural backgrounds. While not conclusive, we can interpret this as evidence against the proposition that justices from urban backgrounds are socialized into values that are more likely to lead them to cast liberal votes later in life.

Alternative Presentation, Using Barplots (could potentially replace Table 1, above)

Figure 3: Urban vs. Rural SCOTUS Voting in Four Issue Areas, 1946-2024

